IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, COURT – II

Item No. 6
CA-(CAA)-40/ND/2021

IN THE MATTER OF:

Purvi Credit and Holdings Pvt. Ltd. And VRB Financial Services Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 26.04.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (J)

SHRI L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT:
Adv. Nikhil Verma, CS Shivam Rastogi & Mahak Agarwal for Applicants

ORDER

Order pronounced in the Open Court today.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

(SAPNA)

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-40/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

PURVI CREDIT AND HOLDINGS PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

VRB FIN STOCK PRIVATE LIMITED

...Applicant No.2/ Transferor Company

AND

INTIME VINIMAY PRIVATE LIMITED

...Applicant No.3/ Transferor Company

WITH

VRB FINANCIAL SERVICES PRIVATE LIMITED

...Applicant No.4/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 26.04.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Nikhil Kumar Verma, Adv.

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)40/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the Appointed Date of 01.04.2020.

2. That Purvi Credit and Holdings Private Limited (hereinafter referred as the **"Transferor Company No. 1"),** having CIN no. U74899DL1991 PTC043174 is a private limited company incorporated under the Erstwhile Companies Act, 1956 on 30.08.2012. The registered office of the Transferor Company No.1 is situated at B-50, Sarita Vihar, New Delhi-110044.

3. That VRB Fin Stock Private Limited (hereinafter referred as the **"Transferor Company No. 2"**) having CIN no. U67120DL1996PTC076116 is a company incorporated under the Companies Act, 2013 on 28.02.2014. The registered office of the Transferor Company No.2 is situated at B-50, Sarita Vihar, New Delhi-110044.

4. That Intime Vinimay Private Limited (hereinafter referred as the **"Transferor Company No. 3"**) having CIN no. U51909DL2009PTC308703 is a company incorporated under the Companies Act, 2013 on 28.02.2014. The registered office of the Transferor Company No.3 is situated at D-10-A, Ganesh Nagar, Pandav Nagar Complex, Delhi-110092.

5. That VRB Financial Services Private Limited (hereinafter referred as the **"Transferee Company No. 4"**) having CIN no. U65993DL1983PTC015012 is a company incorporated under the Companies Act, 2013 on 28.02.2014. The registered office of the Transferee Company No.4 is situated at B-50, Sarita Vihar, New Delhi-110044.

6. That the present Petition has been jointly filed by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

7. It is seen from the record that the Board of Directors of all the Applicant Companies vide separate meetings held on 20.02.2021 have approved the proposed 'Scheme of Amalgamation'.

8. It is stated by the Applicant Companies that the aforesaid Scheme of Amalgamation will result in the following advantages :

"a) Amalgamating Transferor Companies and the Transferee Company will give the consolidated company better finances, facilitate adequate resource mobilization to sustain growth.

b) Strengthening and consolidating the position of the Transferee Company and enabling it post-merger to participate more vigorously and profitably in an increasingly competitive and liberalized market.

c) Enabling better leverage of facilities, infrastructure and human resources and for better administration.

d) Augmenting and strengthening core businesses of the Transferee Company and resulting in enhancement of the shareholders' value of Transferee Company.

e) Enabling the amalgamated entity to raise funds from the financial institutions on better terms. The synergy of the amalgamation will improve operational efficiency, integrated management functioning and will enhance the share value for the benefit of shareholders of the existing entities…."

9. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are not under any prosecution/ investigation/ inquiry under Companies Act 2013.

10. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

11. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2020.

12. That the position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Purvi Credit And Holdings Private Limited Applicant No.1 Company/ Transferor	4	100%	1	100% (in value)
VRB Fin Stock Private Limited Applicant No.2/ Transferor Company	5	100%	Nil	NA
Intime Vinmay Private Limited Applicant No.3/ Transferor Company	2	100%	Nil	NA
VRB Financial Services Private Limited Applicant No.4/ Transferee Company	6	100%	1	100% (in value)

13. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

14. That the '100% in value' of unsecured creditors in the Applicant Company No. 1 and 4 have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the Applicant Companies is dispensed with. Further, there are no unsecured creditors in Applicant No. 2 and Applicant No. 3. Therefore, the requirement of convening their meeting does not arise

15. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

16. **The Application is allowed in the aforesaid terms.**

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)